

**HIGH COURT OF TRIPURA
AGARTALA**

WP(C) No.1022/2019

Sri Tapan Kanti Chakraborty

-----Petitioner(s)

Versus

The State of Tripura & others

-----Respondent(s)

For Petitioner(s) : Mr. P. Roy Barman, Advocate,
Mr. Samarjit Bhattacharjee, Advocate.
For Respondent No.1 : Mr. D. Sharma, Addl. G.A.
For Respondents No.2 & 3 : Mr. Bimal Shome Bhowmik, Advocate.

HON'BLE THE CHIEF JUSTICE MR. AKIL KURESHI

Order

21/01/2020

Heard learned counsel for the parties for final disposal of the petition.

Petitioner is the ex-employee of Tripura Handloom and Handicrafts Development Corporation Limited (hereinafter to be referred to as '*the Corporation*'). He superannuated w.e.f. 28.02.2019. His grievance is that some of his post retiral benefits have not yet been released. These are (i) leave encashment, (ii) gratuity at the enhanced rate, and (iii) difference in salary as per revised pay fixation.

The respondents do not dispute any of these liabilities. In an affidavit dated 20.01.2020 filed by one Sri Pankaj Chakraborti, Managing Director of the Corporation, it is specifically stated that Revised Pay Matrix order was passed on 05.08.2019 giving prospective effect from 01.08.2019 and the pay of the employees of the Corporation was to be notionally revised from 01.10.2018.

Since the petitioner has retired on 28.02.2019 he would also get the benefit of the Revised Pay Matrix for the intervening period. However, shortage of fund is cited as a reason for not releasing such amounts.

While appreciating the hard realities of the financial difficulties of the Corporation, a retired employee cannot be asked to wait indefinitely for receiving post retiral benefits flowing from the rules. It is stated that the Corporation does not have a pension scheme. As a result, only means of survival for a retired employee would be the savings in the form of gratuity, leave encashment and provident fund which would be paid over at the time of retirement. After decades of honest and sincere service an employee cannot be left in penury citing financial difficulties by a State owned Corporation.

Under the circumstances, the respondents are directed to release all the dues of the petitioner in installments so that the entire dues are cleared within a period of 6(six) months from today. Delayed payment of gratuity would carry statutory interest. The remaining amount shall carry simple interest @ 7.5% per annum after completion of 3(three) months from the date of retirement till actual payment.

Petition is disposed of accordingly.

Pending application(s), if any, also stands disposed of.

(AKIL KURESHI), CJ